



Genea – Care Fertility Greenslopes

MN-01104

Phase 1 Determination

Acquisition may be put into effect

23 July 2026

Determination and statement of reasons

Notified acquisition	Genea Pty Ltd's (Genea) proposed acquisition of a single independent clinic, Care Fertility Greenslopes Pty Ltd (Care Fertility), along with an associated trust (Care Fertility Greenslopes Unit Trust) and intellectual property (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, Genea, operates an IVF and fertility business with clinics in NSW, the ACT, Victoria, Queensland, Western Australia and South Australia. In Brisbane, Genea operates a clinic in Bowen Hills and an entity related to Genea (Adora Holdco Pty Ltd) operates a bulk-billed IVF clinic, Adora Fertility, in Taringa. The target, Care Fertility, is an independent gynaecology, IVF and fertility clinic located in Greenslopes, Queensland that is ultimately owned and controlled by Dr Clare Boothroyd.
Overlap between the parties	Genea and Care Fertility overlap in the supply of IVF and fertility services in the greater Brisbane region.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, information from prior matters, and publicly available information. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. • While the supply of IVF and fertility services in greater Brisbane is concentrated, the market share aggregation from the Acquisition is low. • The merged entity would continue to face competition from alternative suppliers of IVF and fertility services in greater Brisbane.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the

	Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**